ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	136th Commission Meeting
DATE:	19 July, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates - HRS • *The HRC and management's proposal to defer performance moderation to the next financial year was apprised to the Commission. The proposal was in keeping with lack of clarity in the criteria, variability of targets across departments/divisions, circumstances of transition period, and the ACC's nature of job.* • *Apprised that the HRC deferred its decision on Wangda Dorji's intention to appear for the Bhutan Civil Service Examination 2023.*	• **While the Commission acknowledged the moderation exercise may attract negative reactions, given the need for performance differentiation and it being a rationale to facilitate important HR actions (performance-based incentives and meritorious promotion), the Commission directed the HRC to administer the exercises as required by the RCSC. Otherwise, the Commission discussed that the RCSC may not accept ACC's proposal as they have adequately sensitized on the requirements since the beginning of the Financial Year. Further, the staff of the ACC being civil servants have to comply to the civil service conditions.** **In implementing the performance moderation, the Commission directed the HRC and moderation committee to ensure objective assessment upon defining clear criteria of differentiation and at the same time ensuring procedural fairness and honesty, also keeping the individuals concerned informed. Upon differentiating performances, particular attention needs to be paid in developing performance standards of the individuals placed under 'partially meeting expectation'. In this regard, the Commission directed the HRC to identify and implement Performance**

		Improvement Plans (PIP) which includes improving identified weaknesses related to competency, behaviors and skills through development interventions. • **The Commission reminded HRC to revisit its decision on Wangda Dorji's application to sit for the BCSE, and encourage him or any other such applicants to choose the ACC as their first choice of employer, if selected. The Commission discussed that enabling them to appear from the civil service examination will promote development of dedicated individuals in the civil service.**
2	Apprise on NHDCL's request for AD information for housing allotment – ADMD, DoPE & LD *ADMD apprised that such request to make informed decision on housing allotment have been accommodated in the past by providing relevant information with the requesting agencies, be it NPPF or the NHDCL.* *However, being mindful of the privacy concerns, the Commission discussed on the way forward.*	**The Commission decided to continue sharing relevant information with NHDCL. However, ADMD was directed to ask NHDCL to include consent/authorization of the applicants in the housing application forms, as in the NPPF's form, to enable obtaining information of any immovable properties and rental income from the ACC, covered under the Asset Declaration Rules.** **With regards to follow-up with five non-declarants for 2021, the Commission directed LD to expedite collection of penalties.** **Further, the notification for the declaration in the online AD system was revised to inform the declarants on retrieving the data from relevant databases and using it for official purposes.**
3	Apprise on CD and Saving accounts of the ACC - SS *The Commission were apprised on SWS Savings account (BOBL); SWS FD/CD account (BDBL); and a CD account (BOBL) of the ACC. It was noted that there is pending bills of Nu. 142,341.80 from the SWS account. Further, SS is currently working on collection of pending rents for the rented apartment in Phuentsholing of Nu. 30,200 from some of the staffs.*	**The Commission decided on the following:** • **The existing SWS savings account to be retained with total balance of Nu. 193,941.91. Other balance of Nu. 827,503.00 from the closed Fixed Deposit was decided to be transferred to the Endowment Fund account to benefit the staff;** • **Open new savings account for Endowment Fund with opening balance of Nu. 6,300,000.00. This increased the ACC's endowment fund from Nu. 5,100,000.00, with additional deposit from SWS as well as Nu. 372,497.27 related to tuition fee refund from a Master's program.** • **Retain the CD account in BOBL with balance of Nu. 498.69.** • **Close the FD/CD account with the BDBL.**

4	Propose plan for building restructuring - SS *The SS presented proposal along with estimates to restructure the offices in the Headquarter. The proposal included restructuring of DoPS, HRS & reception of SS, Digital Forensic Unit of DoI, main door and carpeting of DARe, Sengye Zilnoen Khang, Libray, ceiling in the attic, and refurbishing of interrogation room and documentation room, to be implemented on a priority bases.*	**In view of the limited budget, the Commission prioritized the following:** • **Complete re-arrangement of DoPS office space;** • **Repairing of DARe's main door;** • **Furnishing of the Digital Forensic Unit (DFU) to keep it ready for the new forensic toolkits; and** • **Installation of AC in DFU by relocating one of the ACs from the third floor.** **The shifting and furnishing of reception, HRS and others were directed to be initiated upon securing resources or after ascertaining any available savings from the current budget.** **The Commission directed SS to assess how regularly the Gym facilitates are used, through a survey and also checking on the number of users.** **Further, the Commission directed ICTS to monitor and take stock of the data/repositories stored in the old server to assess its usability to store other data.**
5	Review member composition of Media Management Team and two other committees - PPD *In continuation to the 129th Commission meeting held on 24th May 2023, the Commission revisited some of the committees and its member composition.*	**The Commission endorsed the following:** **A. Media Management Team:** **i. The Chairperson (Chairperson);** **ii. Commissioner Jamtsho (Media spokesperson);** **iii. Commissioner A Karma Rinzin (Alternate spokesperson);** **iv. Director, DoI;** **v. Director, DoPS;** **vi. Director, DoPE;** **vii. Head, DARe;** **viii. Head, LD;** **ix. Head, PPD;** **x. Rinchen Namgay, PO, PPD;** **xi. Information and Media Officer, PPD (Member Secretary).** **B. Gift Administration Committee:** **i. Chief, PD, DoPE (Chairperson);** **ii. Head, SS;** **iii. Kelzang Dema, Sr. Legal Officer, LD; and** **iv. Karma Wangmo, PA (Gift Disclosure Administrator).**

		C) Child Welfare Committee for the Day-Care Centre: **i. Pema Yangchen (Chairperson, Representing parents);** **ii. Head, SS (Representing the agency);** **iii. Sonam Yangchen (Representing caregivers);** **iv. Dil Maya Chhetri (Representing parents); and** **v. Chimmi Rinzin (Representing parents).** **For any vacant caregiver position, the Commission reminded the day-care centre management committee to inform and provide opportunity for interested spouses of the staff.** **Directed to retain Ugyen Penjor, Chief of EMD, DoPS, as the Chairperson of the Management Committee for Staff Welfare Scheme.** **Further, the Commission directed Ugyen Penjor, the then Head of SS, to continue as a member of the Finance Committee, until further notice or changes.**

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Commissioner **Commissioner** **Chairperson**

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